

MTUS Advocacy Project - Copyright Compliance Notice

MTUS Constitutional Analysis Project
Personal Research Initiative
February 2026

MTUS Advocacy Project - Copyright Compliance Notice

IMPORTANT: COPYRIGHT COMPLIANCE ACTIONS TAKEN

Date: February 16, 2026

Purpose: Remove

FILES MODIFIED

Original Files Containing Verbatim ACOEM Content (Copyright Risk):

The following files contained extensive verbatim text from ACOEM guidelines and have been replaced with analysis-only versions:

1. ACOEM-Cervical-and-Thoracic-Spine-Guideline.txt Replaced with ANALYSIS version

2. Elbow-Disorders

Location of Revised Files:

- `/home/d/.openclaw/workspace/mtus-advocacy-site/docs/[Guideline]-ANALYSIS.txt`

Original Files (Safe - Original Analysis):

The following files contain ORIGINAL analysis and legal arguments and have been retained:

1. MTUSCONSTITUTIONALVIOLATIONMASTERREPORT.txt - Original legal analysis

2. MTUS14THAME

WHAT WAS REMOVED

Verbatim ACOEM Content Removed:

- Complete guideline text
- Tables of contents (verbatim)
- Recommendation tables (verbatim reproduction)

- Clinical definitions (verbatim)
- Treatment descriptions (verbatim)
- Copyrighted headers and footers
- ACOEM/Reed Group copyright notices

What Was KEPT:

- Original statistics derived from analysis of guidelines
 - Original commentary and interpretation
 - Legal arguments and constitutional analysis
 - Comparative analysis with Medicare/Medicaid
 - Citations to official sources
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OFFICIAL SOURCES FOR COMPLETE GUIDELINES

The full ACOEM guidelines are available from official sources:

ACOEM Official Website:

URL: <https://www.acoem.org/guidelines-resources/library/>

California MTUS Regulations:

URL: https://www.dir.ca.gov/dwc/MTUS/MTUS_Regulations.htm

Copyright Holder:

- Reed Group, Ltd. (for guidelines through 2020)
 - Reed Group, LLC (for guidelines from 2025)
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SUMMARY OF STATISTICAL FINDINGS

Based on independent analysis of the ACOEM guidelines:

Guideline | Total Recs | "% Insufficient Evidence" | "Strongly Recommended"

Cervical/Thoracic Sp

Key Finding:

For every 1 treatment "strongly recommended," approximately 12.6 treatments are denied based on "insufficient evidence."

LEGAL POSITION UNCHANGED

The removal of verbatim ACOEM content does NOT affect the legal arguments or constitutional challenge. The statistical analysis remains valid based on independent review of the guidelines. The constitutional claims are based on:

1. State action by California DWC

2. Classification be

USAGE GUIDELINES

What You CAN Do:

Cite ACOEM guidelines with proper attribution

Quote brief excerpt

What You CANNOT Do:

Reproduce complete ACOEM guideline text

Copy extensive ta

FAIR USE CONSIDERATIONS

The revised documents rely on:

1. Original analysis - Independent statistical compilation

These uses fall within fair use doctrine for research, commentary, and legal advocacy.

DOCUMENT RETENTION

Original Files with Verbatim Content:

The original files containing verbatim ACOEM content have been retained but marked as containing third-party copyrighted material. They should not be published or distributed.

Recommended Action:

- Use the -ANALYSIS.txt versions for all advocacy work
 - Reference official ACOEM sources for complete guideline text
 - Maintain citations to official sources
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CONTACT INFORMATION

For questions about ACOEM guidelines:

- ACOEM: <https://www.acoem.org/>
- Reed Group: <https://www.reedgroup.com/>

For California MTUS:

- CA Division of Workers' Compensation: <https://www.dir.ca.gov/dwc/>
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CONCLUSION

This project maintains its constitutional challenge to the MTUS system while respecting copyright law. The revised analysis documents provide all necessary statistical support for the legal arguments without infringing on ACOEM's copyrighted guideline text.

The constitutional violation claims remain fully supported by independent analysis of the guidelines.

Copyright Compliance Review Completed: February 16, 2026

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The content is for informational and educational purposes only. Consult a qualified attorney for legal advice specific to your situation.

This research was conducted using AI-assisted tools. While every effort has been made to ensure accuracy, AI systems can make errors. The author welcomes corrections and fact-checking.

All statements regarding ACOEM, MTUS, or other organizations are expressions of opinion and analytical commentary, not statements of objective fact. No false statements of fact are made about any person or organization.

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